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U.S. Department of State Diplomacy in Action

Laos

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The Lao People's Democratic Republic is an authoritarian, Communist, one-party state ruled by the Lao People's Revolutionary Party (LPRP). Although the 1991 Constitution, amended in 2003, outlines a system composed of executive, legislative, and judicial branches, in practice, the LPRP continued to control governance and the choice of leaders at all levels through its constitutionally designated "leading role." In April 2002, the National Assembly reelected the President and Vice President and ratified the President's selection of a prime minister and cabinet. The judiciary was subject to executive influence.

The Ministry of Public Security (MOPS, formerly known as the Ministry of Interior) maintains internal security but shares the function of state control with the Ministry of Defense's security forces and with party and popular fronts (broad-based organizations controlled by the LPRP). The Ministry of Foreign Affairs, with MOPS support, is responsible for oversight of foreigners. The MOPS includes local police, immigration police, security police (including border police), and other armed police units. Communication police are responsible for monitoring telephone and electronic communications. The armed forces are responsible for external security but also have domestic security responsibilities that include counterterrorism and counterinsurgency activities and control of an extensive system of village militias. Civilian authorities generally maintained effective control over the security forces. Some members of the security forces committed serious human rights abuses.

The country is extremely poor with an estimated population of 5.5 million. The economy is overwhelmingly agricultural, with 85 percent of the population engaged in subsistence agriculture. The sharp income inequality between participants in the monetary economy and those in the subsistence economy was demonstrated by the fact that the mean annual income was just over \$300 and the per capita gross domestic product was estimated at \$1,700. Since 1986, the Government has abandoned most of its socialist economic policies in favor of market-based policies. It officially welcomed foreign investment and was gradually strengthening its legal framework, including laws to protect property rights, but a reluctance to embrace far-reaching reforms has slowed the process. The country was heavily dependent on official foreign aid and on remittances from citizens living or working abroad.

The Government's human rights record remained poor, and it continued to commit serious abuses. Citizens did not have the right to change their government. Members of the security forces abused detainees, especially those suspected of insurgent or anti-government activity. Heightened insurgent activity and the Government's response resulted in scores of civilian casualties during the year. Prisoners were sometimes abused and tortured, and prison conditions generally were extremely harsh and life threatening. Police used arbitrary arrest, detention, and surveillance. Lengthy pretrial detention and incommunicado detention were problems. The judiciary was subject to executive, legislative, and LPRP influence, was

corrupt, and did not ensure citizens due process. The Government infringed on citizens' privacy rights and restricted freedom of speech, the press, assembly, and association. The Government continued to restrict freedom of religion, and police and provincial authorities arrested and detained approximately 30 members of Christian churches. At year's end, 13 members of religious communities were in custody or under arrest for their religious beliefs. In some areas, ethnic minority Protestant communities continued to be pressured to renounce their faith. On several occasions, Christians were threatened with expulsion from their villages for refusing to renounce their religion. In one case, senior government officials intervened to prevent an expulsion. A small number of churches were closed during the year, while others were allowed to reopen. Authorities in some areas refused requests from Christian congregations to build new churches or to reopen closed churches. The Government imposed some restrictions on freedom of movement. Societal discrimination against women and minorities persisted, although the Government actively supported a policy of encouraging greater rights for women, children, persons with disabilities, and minorities. The Government restricted some worker rights. Trafficking in women and children was a problem.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

In August, a Christian and former policeman in Attapeu Province was reportedly detained by police on unspecified charges. The body of the detained man was discovered buried in a shallow grave 3 days later. Friends and family of the dead man assumed that he was killed by the police who detained him, but they were unsure of the motive for his killing.

As a result of intensified insurgent attacks against civilian targets, security forces increased counterinsurgency operations, leading to unconfirmed reports of deaths of ethnic Hmong villagers in connection with security sweeps in remote parts of Saisomboun Special Zone, Xieng Khouang, and Houaphanh Provinces.

Relatively quiescent in recent years, the long-running anti-government insurgency increased its activities during the year, resulting in scores of civilian and military casualties. In February, a group of armed insurgents, identified by witnesses as ethnic Hmong, ambushed a bus and other vehicles traveling along Route 13 north of Vang Vieng town in Vientiane Province, killing 10 persons, including 2 Swiss citizens and 1 Chinese citizen. In April, another ambush of a civilian bus on Route 13 near Phoukoun, South of Luang Prabang, resulted in 12 persons killed, many of whom were students on their way home from the Lao New Year's holiday. Witnesses also identified these attackers as ethnic Hmong. After attacking the bus, the attackers doused it with gasoline and ignited it, burning the bodies of the dead and seriously injuring passengers on board.

During the year, there were more organized attacks against symbols of government authority. A group calling itself the Lao Citizens Movement for Democracy proclaimed an "uprising" against the Government in June. That proclamation was immediately followed by an attack by an armed group of insurgents of unknown ethnicity against a customs post in a remote area of Sayaboury Province on the border with Thailand. Thai and Lao police and military forces repelled the attack, but a child was reportedly injured in the clash. In August, insurgent raiders killed three Lao officials during another cross-border attack in Sayaboury Province. Also in August, ethnic Hmong in Houaphanh Province launched a series of coordinated attacks on government outposts in an apparent effort to seize weapons located in a government arsenal in Viengsai town. The attack against the arsenal was repulsed, but in the aftermath, the rebels fired on a bus and motorcycle traveling to a market, killing five passengers. Five of the attackers were also killed when security forces caught up with them shortly after the vehicle ambush. Following this incident, fighting broke out between rebels and government troops in several areas of Houaphanh Province; at least 13 soldiers and probably several dozen Hmong rebels were killed in this fighting, and over 100 Hmong villagers suspected of supporting the rebellion were arrested and detained in the provincial capital. The uprising displaced over 1,000 Hmong villagers, many of whom sought safety in the provincial capital. There were unconfirmed reports of civilians being killed by security forces as part of the campaign to quell this local uprising.

During the year, several bombings occurred throughout the country. In June, an explosive device detonated on a long-distance bus traveling on Route 13 near Thakhek, killing one passenger and injuring several others. In August, a bomb exploded outside the central bus station in Vientiane, injuring as many as a dozen persons. In September, a military court sentenced two active duty soldiers to life imprisonment for the 2000 and 2002 bombings in Vientiane. In October and November, bombings in Vientiane and Savannakhet caused some property damage, but resulted in no injuries. A group calling itself the Free Democratic Government Committee of the Lao People claimed responsibility for these, as well as other bombings that had occurred since 2000.

b. Disappearance

In March, police in Vientiane Province arrested two ethnic Hmong former insurgents on charges of having been involved in the February Vang Vieng bus ambush. Authorities did not notify the suspects' families of the arrests, and both men were missing for more than a month. The families were finally able to locate both men at the provincial jail. The men were subsequently absolved of involvement in the Vang Vieng ambush and released.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution and the Penal Code prohibit torture; however, in practice, members of the security forces subjected prisoners to torture and other abuses. Credible sources reported that detainees sometimes were subjected to beatings, long-term solitary confinement in completely darkened rooms, and burning with cigarettes. In some cases, detainees were held in leg chains or wooden stocks. During the year, several persons arrested for religious activity or suspected insurgent activity were held in wooden stocks or shackles for part of their confinement.

Prison conditions generally are extremely harsh and life threatening. Food rations were minimal, and most prisoners relied on their families for their subsistence. The Government discriminated in its treatment of prisoners, restricting the family visits of some and prohibiting visits to a few. Credible reports indicated that ethnic minority prisoners and some foreign prisoners were treated particularly harshly. Prison authorities used degrading treatment, solitary confinement, and incommunicado detention against perceived problem prisoners, especially suspected insurgents. On occasion, the authorities used incommunicado detention as an interrogation method; in isolated cases, this was life threatening when prisoners were detained in such conditions for lengthy periods. There were confirmed reports that, in a few jails, prisoners were placed in leg chains, wooden stocks, or fixed hand manacles for extended periods (see Section 2.c.). Medical facilities were extremely poor or nonexistent. Some prisoners died as a result of abusive treatment and lack of medical care. Prison conditions for women were similar to those for men. Prisons held both male and female prisoners, although they were placed in separate cells. Juveniles were housed together with adult prisoners.

In June, police in Xieng Khouang Province arrested six persons on charges of having conspired with ethnic Hmong insurgents in the killing of a local militia villager. The six persons included a French journalist and a Belgian journalist, who were in the country to research secretly the plight of a band of Hmong insurgents living in Saisomboun Special Zone, their ethnic Hmong foreign translator, and three local ethnic Hmong porters. The six were in the company of a band of insurgents, waiting to return to the Xieng Khouang provincial capital after having spent several days visiting an insurgent base camp in the forest, when local militia villagers clashed with the group. During the clash, a militia villager was killed. After the six were arrested, they were taken to the provincial capital and held in extremely Spartan conditions for more than a week, during which time the three Lao citizens were reportedly beaten. During this time, one of the three Lao citizens escaped. The remaining five prisoners were subsequently taken to Vientiane and held at Phonetong Prison, where their conditions improved and they reported no further mistreatment. The five were later tried in Xieng Khouang, found guilty of "conspiring to cause the death of an official on duty" and "possession of explosives" and sentenced to 15 years imprisonment. In response to diplomatic intercessions, the Government released and deported the three foreigners; however, the two Lao citizens remained incarcerated at year's end. Human rights groups criticized the continued incarceration of the two citizens, on the grounds that they were only paid porters for the journalists and were not guilty of the charges under which they were convicted.

Several international human rights groups repeated their longstanding requests to the Government to move two political prisoners to a prison with better conditions, including more modern medical facilities (see Section 1.e.). The Government continued to ignore these pleas, as well as other representations regarding use of torture and abusive treatment.

The Government has provided limited access to some detention facilities to U.N. personnel monitoring the status of juveniles in the prison system, and has given limited access to two provincial prisons to representatives of the Swedish Government; however, the Government generally did not permit independent monitoring of prison conditions, including by foreign individuals or organizations. The International Committee of the Red Cross (ICRC) requested access to prisons; however, the Government did not grant access by year's end.

d. Arbitrary Arrest, Detention, or Exile

The Constitution and law prohibit arbitrary arrest and detention; however, in practice the Government did not respect these provisions, and arbitrary arrest and detention remained problems. Police sometimes used arrest as a means of intimidation or to extract bribes. Police exercised wide latitude in making arrests, relying on exceptions to the requirement for arrest warrants for those in the act of committing a crime or for "urgent" cases. Incommunicado detention was a problem (see Section 1.c.). There is a 1-year statutory limit for detention without trial; the length of detention without a pretrial hearing or formal charges by law also is limited to 1 year; however, these limits often were ignored in practice. The Office of the Prosecutor General must authorize police to hold a suspect pending investigation. Authorization is given in 3-month increments, and, in theory, after a maximum of 1 year, a suspect must be released if police do not have sufficient evidence to bring charges. Access to family members and a lawyer was not assured. There is a bail system, but its implementation was arbitrary. A statute of limitations applies to most crimes. In practice, alleged violations of criminal laws have led to lengthy pretrial detentions without charge and minimal due process protection of those detained. Authorities sometimes continued to detain prisoners after they had completed their sentences, particularly in cases where prisoners were unable to pay court fines.

During the year, government authorities arrested and detained approximately 50 Christians. Although most of these persons were released shortly after their detention, some of them, notably 12 members of a group of 21 ethnic Brou arrested in Savannakhet Province in May, were held for months allegedly for other offenses (see Section 2.c.). According to confirmed reports, there were 11 untried religious detainees at year's end.

In August, police in Houaphanh Province detained over 100 ethnic Hmong villagers suspected of involvement in anti-government activities. Most of those detained were taken to the provincial capital for questioning. Reportedly, most of the persons detained were later released, but a number of persons identified as suspected insurgents were later transferred to Vientiane for further questioning and were still detained at year's end.

Police continued to arrest without charges any persons suspected of involvement with the insurgency. For example, in August, an ethnic Hmong in Muang Feuang district of Vientiane Province was arrested on suspicion of having been in contact with insurgent elements in Saisomboun Special Zone. Two former insurgents were likewise held without charges for 2 months on suspicion of being involved with insurgent groups (see Section 1. b.).

Police in some instances administratively overruled court decisions, at times detaining a defendant exonerated by the court, in violation of the law (see Section 1.e.). Local police at times also continued to detain persons who had been ordered released by higher authorities. Police held two ethnic Hmong, who were arrested in Vientiane Province in March on suspicion of having been involved with insurgents, for several weeks after senior officials in Vientiane ordered their release (see Section 1 b). There were no known instances of the police being reprimanded or punished for such behavior.

An unknown number of persons were in detention for suspicion of violations of criminal laws concerning national security, particularly persons suspected of insurgent activities. Security-related laws were sometimes applied to routine criminal actions to justify long periods of incarceration without trial.

The Government did not use forced exile; however, a small group of persons, who fled the country at the time of the change in government in 1975 and who were tried in absentia for anti-government activities, did not have the right of return (see Section 2.d.).

e. Denial of Fair Public Trial

The Constitution provides for the independence of the judiciary and the Prosecutor General's Office; however, senior government and party officials influenced the courts, although perhaps to a lesser degree than in the past. Impunity was a problem, as was corruption. Many observers reported that judges could be bribed. Under the 2003 amendments to the Constitution, the National Assembly Standing Committee appoints judges for life terms rather than the previously mandated 5-year terms; the executive appoints the Standing Committee. The Assembly may remove judges from office for "impropriety." Since 1991, only one judge at the district level has been removed for improper behavior.

Under the amended Constitution, the People's Courts have four levels: District courts, municipal and provincial courts, the Court of Appeals, and the Supreme People's Court. Decisions of the lower courts are subject to review by the Supreme Court, but decisions by military courts are not subject to the Supreme Court's review. Both defendants and prosecutors in civilian courts have the right to appeal an adverse verdict. There are instances in which civilians may be tried in the military courts, but this reportedly was rare.

The Constitution provides for open trials in which defendants have the right to defend themselves with the assistance of a lawyer or other person. The Constitution requires that the authorities inform persons of their rights. The law states that defendants may have anyone assist them in preparing a written case and accompany them at their trial; however, only the defendant may present oral arguments at a criminal trial. The Lao Bar Association, with a membership of nearly 50 attorneys, operates under the direction of the Ministry of Justice. Its members are private attorneys that court litigants may select for trials. For several reasons, including lack of funds, a shortage of attorneys, and a general perception that attorneys cannot affect court decisions, most defendants do not have attorneys or trained representatives. In theory, under the law defendants enjoy a presumption of innocence; however, in practice trial judges usually decided a defendant's guilt or innocence in advance, basing their decisions on the result of police or Prosecutor's Office reports. Reliance on these reports created a presumption that the defendant is guilty. Most trials were little more than pro forma examinations of the accused, with a verdict having already been reached. Most criminal trials reportedly ended in convictions. Defendants sometimes were not permitted to testify on their own behalf. Trials for alleged violations of some criminal laws relating to national security and trials that involved state secrets, children under the age of 16, or certain types of family law were closed.

Most of the country's 450 judges had only basic legal training, and many had few or no references upon which to base their decisions. The National Assembly's Legal Affairs Committee occasionally reviewed Supreme Court decisions for "accuracy" and returned cases to the Court or the Prosecutor General's Office for review when it felt a decision had been reached improperly.

In some instances, police administratively overruled court decisions, at times detaining a defendant exonerated by the court, in violation of the law.

In addition to the hundreds of short- and long-term political detainees (see Section 1.d.), there were nine known political prisoners. Two former Royal Lao Government officials arrested in 1975, Colonel Sing Chanthakoumane and Major Pang Thong Chokbengvoun, were serving life sentences after trials that did not appear to be conducted according to international standards. Two former government officials, Latsami Khamphoui and Feng Sakchittaphong, were arrested in 1990 for advocating a multiparty system and criticizing restrictions on political liberties and were not tried until 1992. They were serving 14-year sentences based on their 1992 convictions. Reportedly both men were in ill health. Five persons arrested in October 1999 for attempting to organize a pro-democracy demonstration in Vientiane were tried and sentenced to 20 years' imprisonment for anti-government activities. During the year, at the urging of the international community, the Prosecutor General's Office reviewed these sentences and reduced them to 10 years (for 3 of the 5) and 5 years (for 2 of the 5). However, the five remained incarcerated in Vientiane at year's end.

Other political prisoners may have been arrested, tried, and convicted under laws relating to national security that prevent public court trials; however, the Government was silent on the matter, and there was no reliable independent method to ascertain accurately their total number.

f. Arbitrary Interference With Privacy, Family, Home, or Correspondence

The Government limits citizens' privacy rights, and the Government's surveillance network is vast. Security laws allow the Government to monitor individuals' private communications (including e-mail and cell phones) and movements. However, some personal freedoms accorded to citizens have expanded along with the liberalization of the economy.

The Constitution prohibits unlawful searches and seizures; however, police at times disregarded constitutional requirements to safeguard citizens' privacy, especially in rural areas. By law, police may not authorize their own searches; they must have approval from a prosecutor or court; however, in practice, police did not always obtain prior approval. The Penal Code generally protects privacy, including that of mail, telephone, and electronic correspondence; however, the Government often violated these legal protections.

MOPS monitored citizens' activities; in addition, an informal militia in both urban and rural areas, operating under the aegis of the military, had responsibility for maintaining public order and reporting "undesirable elements" to the police. The militia usually was more concerned with petty crime and instances of moral turpitude than with political activism, although in remote rural areas where the insurgency was active the militia also played a role in providing security against insurgents and robbers. A sporadically active system of neighborhood and workplace committees under the control of popular front organizations played a similar monitoring role.

Although the Government permitted the public sale of leading foreign magazines and newspapers, restrictions on publications mailed from overseas were enforced, albeit loosely (see Section 2.a.). The Government allowed citizens to marry foreigners but only with prior approval. Although the Government routinely granted permission, the process was lengthy and burdensome. Marriages to foreigners without government approval could be annulled, with both parties subject to arrest or fines.

During the year, the Government accelerated efforts to relocate highland slash-and-burn farmers, most of whom belong to ethnic minority groups, to lowland areas, in keeping with the Government's plan to end opium production by 2005 and slash-and-burn agriculture by 2010. District and provincial officials used persuasion and, in some cases, verbal orders to encourage villages to relocate, especially in the northern provinces. Although the Government's resettlement plan called for compensating farmers for lost land and resettlement assistance in their new homes, in many cases, this assistance was not available or was insufficient to give relocated farmers the means to adjust to their new homes and new way of life. Moreover, in some areas, farmland allocated to relocated villagers was of poor quality and unsuited for intensive rice farming. The result was that in some districts relocated villagers experienced increased poverty, hunger, malnourishment, susceptibility to disease, and increased mortality.

In at least one instance, ethnic Brou villagers in a remote area of Savannakhet Province were expelled from their village because of their Christian faith. Other Christians in several villages in Attapeu, Vientiane, and Bolikhamxai provinces were likewise threatened with expulsion for their religious convictions; however, these expulsion orders were not carried out. In at least one case, senior officials of the Lao Front for National Construction intervened to prevent district officials from expelling Christian families from their village (see Section 2.c.).

There were six Internet service providers. The Prime Minister's Office has stated that it intended to monitor and control more actively Internet communications by the country's nearly 4,000 subscribers; however, most Internet sites, including those critical of the Government, were accessible to users. More than 40 Internet cafes in Vientiane and other larger towns catered primarily to foreigners but were also accessible to citizens.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press; however, the Government severely restricted political speech and writing in practice. The Government also prohibited most criticism that it deemed harmful to its reputation. The Penal Code forbids slandering the State, distorting party or state policies, inciting disorder, or propagating information or opinions that weaken the State. Citizens who lodged legitimate complaints with government departments generally did not suffer reprisals, but criticism of a more general nature, or targeting the leadership, could lead to censure or arrest.

All domestic print and electronic media are state-owned and controlled. Local news in all media reflected government policy. Television talk shows and opinion articles referred only to differences in administrative approach. Although domestic television and radio broadcasts were closely controlled, the Government made no effort to interfere with television and radio broadcasts from abroad. In practice, many citizens routinely watched Thai television or listened to Thai radio, including news broadcasts. Citizens had 24-hour access to Cable News Network and the British Broadcasting Corporation, among other international stations accessible via satellite television. The Government required registration of receiving satellite dishes and a one-time licensing fee for their use, largely as a revenue-generating scheme, but otherwise made no effort to restrict their use. In addition, a Chinese-owned company provided cable television service to subscribers in Vientiane. This government-registered cable service offered Thai and international news and entertainment programs without restriction from authorities. A few Asian and Western newspapers and magazines were available through private outlets that had government permission to sell them.

Foreign journalists must apply for special visas. Although such visas normally were granted, persons traveling on journalist visas were restricted in their activities. The authorities did not allow journalists free access to information sources, but some journalists were allowed to travel without official escort. In addition, they must pay a daily fee for the services of their escort. Two journalists arrested in June for having been in the company of insurgents who were responsible for the death of a local militia soldier traveled on tourist, rather than journalist, visas (see Section 1.c.).

The authorities also prohibited the dissemination of materials deemed to be indecent, to undermine the national culture, or to be politically sensitive. Any person found guilty of importing a publication deemed offensive to the "national culture" faced a fine or imprisonment for up to 1 year. The Prime Minister's Decree on the Administration and Protection of Religious Practice (Decree 92), promulgated in 2002, permits the publication of religious material with permission from the Lao Front for National Construction. In practice, although several religious groups have sought such permission, no Christian or Baha'i groups received authorization to publish religious material by year's end (see Section 2.c.).

Films and music recordings produced in government studios must be submitted for official censorship; however, in practice, most foreign films and music were easily available in video and compact disc format. During the year, the authorities in Vientiane launched a crackdown on entertainment clubs in an effort to prevent minors from frequenting those establishments. The Ministry of Information and Culture imposed new restrictions aimed at limiting foreign influence in music and entertainment; however, these restrictions were only loosely enforced.

The Government controlled all domestic Internet servers and occasionally blocked access to those Internet sites that were deemed pornographic or were critical of government institutions and policies. The Government also sporadically monitored e-mail. Highly restrictive regulations regarding Internet use by citizens significantly curtail freedom of expression. "Disturbing the peace and happiness of the community" and "reporting misleading news" are criminal acts. In addition, the Prime Minister's Office consolidated government control over Internet service (see Section 1.f.). However, the Government in the past has been limited in its ability to enforce such regulations.

The Constitution provides for academic freedom; however, the Government restricted it, although over the past several years it has relaxed its restrictions in certain areas. Both citizen and noncitizen academic professionals conducting research in the country may be subject to restrictions on travel and access to information and Penal Code restrictions on publication. As the

sole employer of virtually all academic professionals, the Government exercised some control over their ability to travel for research or to obtain study grants; however, the Government, which once limited foreign travel by professors, actively sought such opportunities worldwide and approved virtually all such proposals.

b. Freedom of Peaceful Assembly and Association

The Constitution provides for freedom of assembly; however, the Government restricted this right in practice. The Penal Code prohibits participation in an organization for the purpose of demonstrations, protest marches, or other acts that cause "turmoil or social instability." Such acts are punishable by a prison term of from 1 to 5 years. If defendants were tried for crimes against the State, they could face sentences of up to 20 years or possible execution.

The Constitution provides citizens with the right to organize and join associations; however, the Government restricted this right in practice. The Government registered and controlled all associations and prohibited associations that criticized the Government. Political groups other than popular front organizations approved by the LPRP were forbidden. Although the Government restricted many types of formal professional and social associations, in practice, informal nonpolitical groups met without hindrance. The Foundation for Promoting Education, a private voluntary organization in Vientiane Municipality, operates independently under its own charter; however, it reports to the Ministry of Education. The Buddhist Promotion Foundation is a semiprivate group founded in 1998 by the Lao Buddhist Fellowship Association, which reports to the LPRP Lao Front for National Construction.

c. Freedom of Religion

The Constitution provides for freedom of religion; however, the authorities, particularly at the local level, interfered with this right in practice.

Although the state is secular in both name and practice, the Party and the Government paid close attention to Theravada Buddhism, which was followed by more than 40 percent of the population and was the faith of nearly all of the country's ethnic Lao population. The Constitution does not recognize a national religion, but the Government's support for and oversight of temples and other facilities and its promotion of Buddhist practices, gave Buddhism an elevated status among the country's religions.

The Constitution prohibits "all acts of creating division of religion or creating division among the people." The LPRP and Government apparently interpreted this section as inhibiting religious practice by all persons, including the Buddhist majority and a large population of animists. Although official pronouncements acknowledged the positive benefits of religion, they also emphasized its potential to divide, distract, or destabilize. The Constitution notes that the State "mobilizes and encourages" Buddhist monks, novices, and priests of other religions to participate in activities "beneficial to the nation and the people."

In 2002, the Prime Minister's Office issued a Decree on the Administration and Protection of Religious Practice. The decree, which has the effect of law, is designed to specify clearly the range of activities permitted religious groups or practitioners. The decree permits minority religious groups to engage in a number of activities that have previously been considered by most authorities to be illegal, such as proselytizing and printing religious material; however, it requires religious groups or individuals to obtain permission in advance for these activities, in most cases from the Lao Front for National Construction, the party-controlled organization that oversees religious issues on behalf of the Government. Although the intent of the decree is to clarify the rights and responsibilities of religious groups, many minority religious leaders complained that the decree was too restrictive in practice. The requirement that religious groups obtain permission, sometimes from several different offices, for a broad range of activities greatly limited the freedom of these groups.

During the year, government authorities arrested and detained approximately 50 Christians, at times holding them in custody for months. In several cases, the prisoners were handcuffed, detained in leg chains and stocks, and subjected to psychological pressure.

During the year, there were reports of authorities closing churches. Local officials in Savannakhet Province closed two churches and seized property belonging to a local Christian congregation. However, in October, these same officials returned one church and parsonage that had been seized previously. In some areas of the country, officials continued to refuse requests to reopen already-closed churches, or to construct new church buildings. There were reports that authorities in some areas used intimidation or threats of expulsion to force Christians to renounce their religious faith, particularly in Saisomboun Special Zone and in Savannakhet, Attapeu, Bolikhamsai, and Luang Prabang provinces.

There are two semi-religious government-recognized holidays--Boun That Luang and the end of Buddhist Lent--that are also major political and cultural celebrations. The Government recognizes the popularity and cultural significance of Buddhist festivals, and most senior officials openly attended them. Buddhist clergy were featured prominently at important state and party functions, and the Government's dedication early in the year of a monument to a founding King of Laos was as much a religious as a secular event.

The Lao Front for National Construction directs the Lao Buddhist Fellowship Association. Since 1996, monks studying at the National Pedagogy School were no longer required to study Marxism-Leninism as part of their curriculum, and the integration of Communist ideology in Buddhist instruction has waned greatly in recent years. Some temples have been permitted to receive support from Theravada Buddhist temples abroad, to expand the training of monks, and to focus more on traditional teachings. In addition, many monks traveled abroad, particularly to Thailand, for formal religious training.

The authorities continued to be suspicious of non-Buddhist religious communities, including some Christian groups, in part because these faiths did not share Theravada Buddhism's high degree of direction and incorporation into the government structure. Some authorities criticized Christianity in particular as a Western or imperialist "import." Local authorities, apparently with encouragement from some officials in the central Government or Communist Party, singled out Protestant groups as a target of persecution. Protestant churches' rapid growth over the last decade, contact with religious groups abroad, aggressive proselytizing on the part of some members, and independence of central government control all have contributed to Government and Communist Party suspicion of the churches' activities. The Government strictly prohibited foreigners from proselytizing, although it permitted foreign nongovernmental organizations with religious affiliations to work in the country. Foreign persons found distributing religious material may be arrested or deported, although no such incidents were known to have occurred during the year. Although Decree 92 on Religious Practice, promulgated in 2002, permits proselytizing by religious practitioners as long as they obtain permission for such activities from the Lao Front for National Construction, the Front has not yet granted such permission, and persons found evangelizing risked harassment or arrest.

The Government's tolerance of religion varied by region. The Lao Front for National Construction often sought to intervene with local governments in cases where minority religious practitioners, particularly Christians, had been harassed or mistreated; however, incidents of religious intolerance by local officials continued in some areas. Although there was almost complete freedom to worship in a few areas, particularly in the largest cities, government authorities in many regions allowed properly registered religious groups to practice their faith only under restrictive conditions. Officials in some areas of Savannakhet, Attapeu, and Luang Prabang provinces continued to arrest and detain some religious believers without charges (see Section 1.d.). Unlike in previous years, there were no reports during the year that local officials in isolated areas monitored and arrested persons who converted to Christianity. Followers of the Baha'i faith were able to practice their religion without hindrance in Vientiane city, but in Savannakhet Province, the small Baha'i community continued to face restrictions from local authorities on their gatherings for worship. The small community of Muslims in Vientiane, made up almost exclusively of foreign nationals, was able to practice their religion without hindrance.

Although in most parts of the country members of long-established congregations had few problems in practicing their faith, some churches established a century ago continued to be subjected to harassment and closure by local government officials in Savannakhet. The authorities sometimes advised new congregations to join other religious groups with similar historical roots, despite clear differences between the groups' beliefs. While Decree 92 establishes procedures for new denominations to register with the Lao Front for National Construction, during the year, the Front did not authorize any new denominations to practice in the country, although several applied. These denominations continued to conduct worship services; however, their members risked arrest for their unauthorized activities.

The Roman Catholic Church was unable to operate effectively in the highlands and much of the north, and the Catholic Church in the northern part of the country was largely moribund. The small Catholic communities in Luang Prabang, Sayaboury, and Bokeo provinces sporadically held services in members' homes, but there were no priests resident in the area and pastoral visits from Vientiane were infrequent. However, the church had an established presence in five of the most populous central and southern provinces, where Catholics were able to worship openly. There were three official bishops, one each in Vientiane, Thakhek, and Pakse, as well as a fourth bishop for Luang Prabang who resided in Vientiane and traveled infrequently to his bishopric.

Between 250 and 300 Protestant congregations conducted services throughout the country. The Lao Front for National Construction has recognized two Protestant groups: The Lao Evangelical Church (the umbrella Protestant church) and the Seventh-Day Adventist Church. Nominally all Protestant congregations in the country belong to one of these two organizations, although in practice some congregations operated independently. Both the Lao Evangelical Church and the Seventh Day Adventist Church own properties in Vientiane and other cities.

The Government generally permitted major religious festivals of established congregations without hindrance; however, in some areas, local officials restricted the celebration of major Christian holidays by some congregations. Several Protestant congregations in remote areas of Vientiane, Luang Prabang, Savannakhet, and Sayaboury Provinces were required to join with other congregations, often some distance away, in Easter celebrations. Villagers in several districts of Savannakhet Province, arrested in December 2002 for holding Christmas worship service outside their closed churches, were released early in the year. In December, authorities in Savannakhet Province arrested nine Christians who were attending pre-Christmas services, releasing them several days later. Just after Christmas, authorities in Attapeu arrested 11 Christians who were attending home prayer services, after having denied the Christians permission to hold public Christmas services.

Animists generally experienced no interference from the Government in their religious practices, which varied extensively among the approximately 70 identified ethnic groups and tribes in the country; however, the Government actively discouraged animist practices that it regarded as outdated, unhealthful, or illegal, such as the practice in some tribes of infanticide of infants born with birth defects or of keeping the bodies of deceased relatives in homes.

Until recently, the Government did not permit the printing of non-Buddhist religious texts or their distribution outside a congregation and restricted the import of foreign religious texts and artifacts. Decree 92 on Religious Practice permits the printing of religious material, providing permission is obtained from the Lao Front for National Construction. The Government required and usually granted its permission for formal links with coreligionists in other countries; however, in practice, the distinction between formal and informal links was unclear, and relations with coreligionists generally were established without much difficulty (see Section 2.a).

For a more detailed discussion, see the [2003 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2003/\)](https://2009-2017.state.gov/j/drl/rls/irf/2003/).

d. Freedom of Movement Within the Country, Foreign Travel, Migration, and Repatriation

The Constitution provides for these rights; however, the Government restricted some of them in practice. Citizens who traveled across provincial borders no longer were required to report to authorities upon their departure and arrival; however, in designated security zones, roadblocks and identity card checks of travelers were conducted occasionally. Citizens who sought to travel abroad were required to apply for an exit visa. The Government usually granted such visas; however, officials at the local level have denied permission to apply for passports and exit visas to some persons seeking to emigrate. Access by foreigners to certain areas, such as the Saysomboune Special Zone, an administrative area operated by the military forces, was restricted for safety and security reasons.

During the year, there were at least 5 separate insurgent ambushes on passenger vehicles, resulting in the deaths of at least 36 civilians (see Section 1.a.).

Between 1980 and 1999, more than 29,000 citizens who sought refugee status in Thailand, China, and other countries returned to Laos for permanent resettlement under monitoring by the U.N. High Commissioner for Refugees (UNHCR). Other persons who had fled the country after 1975 have returned from abroad to resettle voluntarily, outside the oversight of the UNHCR. In general, returnees have been subject to greater scrutiny by the authorities than other citizens. Nevertheless, many who fled after the change of government in 1975 have visited relatives, some have stayed and gained foreign resident status, and some have reclaimed citizenship successfully. Some refugee returnees carry government-issued identification cards with distinctive markings, ostensibly for use by authorities. Such cards tend to reinforce a pattern of societal discrimination against the returnees. A small group tried in absentia in 1975 for antigovernment activities does not have the right of return (see Section 1.d.).

The Constitution provides for asylum and the protection of stateless persons under the law; however, in practice, the Government did not provide protection against refoulement and did not routinely grant refugee or asylum status.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

Citizens do not have the right to change their government. Although the 1991 Constitution, amended in 2003, outlines a system composed of executive, legislative, and judicial branches, in practice, the LPRP continued to control governance and the choice of leaders at all levels through its constitutionally designated "leading role." The Constitution provides for a representative National Assembly, elected every 5 years in open, multiple-candidate, fairly tabulated elections, with voting by secret ballot and universal adult suffrage; however, it legitimizes only a single party, the LPRP. Election committees, appointed by the National Assembly, must approve all candidates for local and national elections. Candidates need not be LPRP members, but in practice, almost all were.

The National Assembly chooses a standing committee generally based on the previous standing committee's recommendation. Upon the committee's recommendation, the National Assembly elects or removes the President and Vice President. The standing committee also has supervision of administrative and judicial organizations and the sole power to recommend presidential decrees. It also appoints the National Election Committee, which has powers over elections (including approval of candidates). Activities of the standing committee were not fully transparent.

The National Assembly, upon the President's recommendation, elects the Prime Minister and other Ministers of the Government. The 109-member National Assembly, elected in February 2002 under a system of universal suffrage, approved the LPRP's selection of the President at its inaugural session in April 2002, and, in the same session, it ratified the President's selection of a new Prime Minister and cabinet. The National Assembly may consider and amend draft legislation, but only permanent subcommittees of the Assembly may propose new laws. The Constitution gives the right to submit draft legislation to the National Assembly standing committee and the ruling executive structure.

Women increased their representation in the National Assembly in the 2002 elections from 20 to 22 members in the 109-member body. Three members of the 53-member LPRP Central Committee were women, one of whom was also a member of the 7-member standing committee in the National Assembly. There were no women in the Politburo or the Council of Ministers.

The proportions of ethnic minority members in the 109-member National Assembly--9 Lao Soung (highland dwelling tribes) and 19 Lao Theung (mid-slope dwelling tribes)--were slightly less than in the previous national assembly; most members of the Assembly were ethnic Lao, who also dominated the upper echelons of the Party and the Government. Three cabinet ministers were members of ethnic minority groups.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

There are no domestic nongovernmental human rights organizations, and the Government does not have a formal procedure for registration. Any organization wishing to investigate and publicly criticize the Government's human rights policies would face serious obstacles if it were permitted to operate at all.

The Government in general does not respond in writing to requests for information on the human rights situation from international human rights organizations; however, the Government has instituted a human rights dialogue with the Swedish Government and has accepted training in U.N. human rights conventions from several international donors. In February, it also answered a specific query from Amnesty International regarding the fate of six imprisoned citizens allegedly convicted of demonstrating against the Government and explained that the individuals had been convicted of espionage but recently had had their sentences reduced.

The Government maintains contacts with the ICRC; government officials received ICRC training on human rights law in 1998 and again during the year, and the Government continued to translate international human rights and humanitarian law conventions with ICRC support. The Government permitted U.N. human rights observers to monitor the treatment of almost 30,000 returned refugees in all parts of the country with minimal interference (see Section 2.d.). The UNHCR's office in the country closed at the end of 2001, with the Commissioner's determination that the office's monitoring role had been completed and former refugees had been successfully reintegrated; however, since the closing of the UNHCR office the Government has not permitted UNHCR monitors based in Thailand to conduct monitoring visits to the country.

A human rights unit in the Ministry of Foreign Affairs' Department of International Treaties and Legal Affairs has responsibility for inquiry into allegations of human rights violations. This unit rarely responded to inquiries regarding individual cases.

Section 5 Discrimination Based on Race, Sex, Disability, Language, or Social Status

The Constitution provides for equal treatment under the law for all citizens without regard to sex, social status, education, faith, or ethnicity. The Government at times took action when well-documented and obvious cases of discrimination came to the attention of high-level officials, although the legal mechanism whereby a citizen may bring charges of discrimination against an individual or organization was neither well developed nor widely understood among the general population. There was no official discrimination against those with HIV/AIDS, but social discrimination existed. The Government conducted awareness campaigns during the year to educate the population and promote understanding toward those with HIV/AIDS.

Women

There were reports that domestic violence against women occurred, although it did not appear to be widespread. Spousal abuse is illegal. Rape reportedly was rare. In cases of rape that were tried in court, defendants generally were convicted with penalties ranging from 3 years' imprisonment to execution. Spousal rape is not illegal.

Trafficking in women and girls for prostitution was a problem (see Section 6.f.). Prostitution is illegal with penalties ranging from 3 months to 1 year in prison.

Sexual harassment was rare. Although sexual harassment is not illegal, "indecent sexual behavior" toward another person is illegal and punishable by 6 months' to 3 years' imprisonment.

The Constitution provides for equal rights for women, and the Lao Women's Union operated nationally to promote the position of women in society. The Family Code prohibits legal discrimination in marriage and inheritance. Discrimination against women was not generalized; however, varying degrees of traditional, culturally based discrimination persisted, with greater discrimination practiced by some hill tribes. Many women occupied responsible positions in the civil service and private business, and in urban areas their incomes were often higher than those of men.

In recent years, the Government increased support for development programs designed to improve the position of women in society, including in the political system.

Children

The level of budgetary support for education was very low. Education is free and compulsory through the fifth grade; however, fees for books, uniforms, and equipment, among other factors, precluded children from rural areas and poor urban families from complying with this requirement. According to government statistics, 80 percent of primary school-age children, 50 percent of junior high school-age children, and 25 percent of high school-age children were enrolled in school; the U.N. Development Program estimated that almost 40 percent of children never attended school at all and only 10 percent entered secondary school. There was significant difference in the treatment of boys and girls in the educational system: Female literacy was 48 percent versus 70 percent for males; however, men and women attended the national university in approximately equal numbers. Although the Government has made children's education and health care a priority in its economic planning, funding for children's basic health and educational needs was inadequate, and the country had a very high rate of infant and child mortality.

Violence against children is prohibited by law, and violators were subject to stiff punishments. Reports of the physical abuse of children were rare. Trafficking in girls for prostitution and forced labor was a problem (see Section 6.f.). Other forms of child labor generally were confined to family farms and enterprises (see Section 6.d.).

Persons with Disabilities

With donor assistance, the Government implemented limited programs for persons with disabilities, especially amputees. The law does not mandate accessibility to buildings or government services for persons with disabilities, but the Labor and Social Welfare Ministry has established some regulations regarding building access and some sidewalk ramps in Vientiane. The Lao National Commission for the Disabled has promulgated regulations to protect the rights of persons with disabilities.

National/Racial/Ethnic Minorities

The Constitution provides for equal rights for all minority citizens, and there is no legal discrimination against them; however, societal discrimination persisted. Moreover, critics have charged that the Government's resettlement program for ending slash-and-burn agriculture and opium production has adversely affected many ethnic minority groups, particularly in the north. The program requires that resettled persons adopt paddy rice farming and live in large communities, ignoring their traditional livelihoods and community structures. The program has led to an active debate among international observers about whether the benefits of resettlement promoted by the Government--providing access to markets, schools, and medical care for resettleses--outweigh the negative impacts on traditional cultural practices.

Less than half the population is ethnic Lao, also called "lowland Lao." Most of the remainder, probably around 60 percent, is a mixture of diverse upland hill tribes whose members, if born in the country, are citizens. There were also ethnic Vietnamese and Chinese minorities and a small community of South Asian origin, particularly in the towns. The Law on Nationality provides a means for foreigners to acquire citizenship, and each year some foreigners, mostly Vietnamese and Chinese, acquire Lao citizenship. The Government encouraged the preservation of minority cultures and traditions; however, due to their remote location and inaccessibility, minority tribes had little voice in government decisions affecting their lands and the allocation of natural resources.

The Hmong are one of the largest and most prominent highland minority groups. There were a number of Hmong officials in the senior ranks of the Government and LPRP, including at least five members of the LPRP Central Committee. However, societal discrimination against the Hmong continued, and some Hmong believe their ethnic group cannot coexist on an equal basis with the ethnic Lao population. This belief has fanned separatist or irredentist beliefs among some Hmong. In recent years, the Government focused some limited assistance projects in Hmong areas in order to address regional and ethnic disparities in income. The Government also provided for Hmong and Khmu language radio broadcasts.

The increased number of attacks by Hmong insurgents against civilian and military targets, coupled with the outbreak of a localized uprising in Houaphanh Province in August, heightened ethnic tensions and aroused the government leadership's suspicion of Hmong irredentist desires. These heightened security problems also resulted in increased efforts by security forces to eliminate scattered pockets of insurgents living in remote jungle areas. One group in Saisomboun Special Zone numbering 700 ethnic Hmong, mostly women and children, was highlighted in several international press articles, which alleged that the group was being systematically hunted down and attacked by government air and ground forces and that it was at the point of starvation. During the year, the U.N. Committee to Eliminate Racial Discrimination strongly criticized the Government for its treatment of these insurgent Hmong remnants.

At least partially in response to charges that it was trying to kill all insurgent elements, the Government publicized its amnesty program, which promised amnesty to all insurgents and family members who came out of the forest and turned in their weapons. Small groups took up this offer and received small amounts of resettlement assistance from the Government, especially in Vientiane, Bolikhamsai, and Xieng Khouang provinces and in the Saisomboun Special Zone. In some areas, such as in Bolikhamsai, this amnesty program included job training, land, and equipment for farming. However, in some cases, this assistance was less than had been promised to the insurgents on their surrender. Moreover, because of their past activities, amnestied insurgents continue to be the focus of government suspicion and scrutiny (see Sections 1.a. and 1.c.).

During the past 2 years, international observers who monitored the status of ethnic minorities, especially Hmong, who repatriated under UNHCR auspices in the late 1990s, reported no significant human rights violations.

The Constitution states that foreigners and stateless persons are protected by "provisions of the laws," but in practice, they did not enjoy the rights provided for by the Constitution.

Section 6 Worker Rights

a. The Right of Association

Under the law, labor unions may be formed in private enterprises as long as they operate within the framework of the officially sanctioned Federation of Lao Trade Unions (FLTU), which in turn is controlled by the LPRP. Most of the FLTU's approximately 77,000 members worked in the public sector.

The State employed the majority of salaried workers, although this situation was changing as the Government privatized state enterprises and otherwise reduced the number of its employees. Subsistence farmers made up an estimated 85 percent of the work force.

The 2001 Report of the International Labor Organization (ILO) Committee of Experts cited the Government for its failure to submit reports on ratified conventions required of member states. Furthermore, the Government has not replied to comments by the Committee from 8 years ago.

The FLTU was free to engage in contacts with foreign labor organizations, which during the year included contacts with the Association of Southeast Asian Nations Trade Unions and the Asia-Pacific American Labor Alliance. The FLTU was a member of the World Federation of Trade Unions.

b. The Right to Organize and Bargain Collectively

There is no right to organize and bargain collectively. The Labor Code stipulates that disputes be resolved through workplace committees composed of employers, representatives of the local labor union, and representatives of the FLTU, with final authority residing in the Ministry of Labor and Social Welfare. Labor disputes reportedly were infrequent. The Government sets wages and salaries for government employees, while management sets wages and salaries for private business employees.

Strikes are not prohibited by law, but the Government's ban on subversive activities or destabilizing demonstrations (see Section 2.b.) made a strike unlikely, and none were reported during the year.

The Labor Code stipulates that employers may not fire employees for conducting trade union activities, for lodging complaints against employers about labor law implementation, or for cooperating with officials on labor law implementation and labor disputes, and there were no reports of such cases during the year. Workplace committees were one mechanism used for resolving complaints; however, there was no information on how effective these committees were in practice.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The Labor Code prohibits forced labor except in time of war or national disaster, during which time the State may conscript laborers. The Code also prohibits forced or bonded labor by children; however, there were reports that such practices occurred (see Section 6.f.).

d. Status of Child Labor Practices and Minimum Age for Employment

Under the Labor Code, children under age 15 may not be recruited for employment, except to work for their families, provided that such children are not engaged in dangerous or difficult work. Many children helped their families on farms or in shops, but child labor was rare in industrial enterprises. Some garment factories reportedly employed a very small number of underage girls. The Ministries of Public Security and Justice are responsible for enforcing these provisions. Enforcement was ineffective due to a lack of inspectors and other resources.

The Government has not ratified ILO Convention 182 against the worst forms of child labor.

e. Acceptable Conditions of Work

The Labor Code provides for a workweek limited to 48 hours (36 hours for employment in dangerous activities). The Code also provides for at least 1 day of rest per week. The daily minimum wage was about \$0.40 (4,000 kip), which was insufficient to provide a decent standard of living for a worker and family. Most civil servants received inadequate pay. Some piecework employees, especially on construction sites, earned less than the minimum wage.

The Labor Code provides for safe working conditions and higher compensation for dangerous work. Employers are responsible for all expenses for a worker injured or killed on the job, a requirement generally fulfilled by employers in the formal economic sector. The Labor Code also mandates extensive employer responsibility for those disabled while at work. During the year, this law was enforced adequately. Although workplace inspections reportedly have increased over the past several years, the Ministry of Labor and Social Welfare lacked the personnel and budgetary resources to enforce the Labor Code effectively. The Labor Code has no specific provision allowing workers to remove themselves from a dangerous situation without jeopardizing their employment.

There were a number of illegal immigrants in the country, particularly from Vietnam and China, and they were vulnerable to exploitation by employers. Some illegal immigrant Vietnamese children worked selling goods on the streets of Vientiane.

f. Trafficking in Persons

The Penal Code prohibits abduction and trade in persons as well as the constraint, procuring, and prostitution; however, trafficking in persons, particularly women and children, was a problem. Laos was primarily a country of origin for trafficking in persons and to a lesser extent, a country of transit. There was almost no effective border control. There was little reliable data available on the scope and severity of the problem until recently, when studies indicated that the scale of economic migration out of the country, mostly young people between the ages of 15 and 30, was far greater than had previously been supposed.

About 7 percent of the total sample population in three southern provinces migrated, either seasonally or permanently. Approximately 45 percent of them were male and 55 percent female, and an unknown number of these persons were actually trafficked in some sense of the term. A small number of citizens were trafficked to China and other third countries, including the United States. In recent years, highland minority women from the remote interior of the country have become the group most vulnerable to traffickers. These groups do not have the cultural familiarity or linguistic proximity to Thai that Lao-speaking workers can use to protect themselves from exploitative situations. A much smaller number of trafficked foreign nationals transited through Laos, especially Burmese and Vietnamese.

Many labor recruiters in the country were local people with cross-border experience and were known to the trafficked persons. For the most part, they had no connection to organized crime, commercial sexual exploitation, or the practice of involuntary servitude, but their services ended once their charges reached Thailand, where more organized trafficking operations also operated.

There were few reports of official involvement in trafficking; however, anecdotal evidence suggested that local officials knew of trafficking activities, and some may have profited from them.

In the past, the Government has prosecuted some persons for involvement in trafficking activities. During the year, a female trafficker was tried, convicted, and sentenced to 2 years imprisonment in one southern province. The police occasionally arrested both citizens and foreigners for having sexual relations outside of marriage, which is prohibited under the law. The Government previously denied that there were cases of child prostitution in the country; however, in recent years it has become more actively involved in countering the worst forms of trafficking and the exploitation of underage persons, chiefly through cooperation with international NGOs working on trafficking problems.

The Ministry of Labor and Social Welfare (MLSW) has a unit devoted to children with special needs, including protection and prevention of trafficking. The Ministry also maintains a small-scale repatriation assistance center for returned victims of trafficking. However, the unit's effectiveness was limited by a small budget, inadequate international assistance, and a lack of trained personnel. The MLSW and the Lao Women's Union have conducted pilot studies on anti-trafficking information campaigns and are now pursuing more active interventions in conjunction with NGOs. Financial constraints limited the contributions the Government could make, but it did offer the services of ministerial personnel and venues to NGOs doing anti-trafficking work.

The Lao Women's Union and the Youth Union, both party-sanctioned organizations, offered educational programs designed to educate girls and young women regarding the schemes of recruiters for brothels and sweatshops in neighboring countries and elsewhere. These organizations were most effective in disseminating information at the grassroots level.

Some victims have been punished for improper documentation or for crossing the border illegally. Despite a new Memorandum of Understanding with Thailand regarding border control and a decree allowing citizens to work abroad, this practice continued, especially in the provinces. The victims have no recourse to relief. Some local authorities have ordered trafficking victims into reeducation seminars and subjected them to substantial fines. The National Commission for Mothers and Children continued an active program of support for victims with support from UNICEF.

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